ROCK CLIMBING

HIKING / WALKING

Milk

Public Welfare Offenses

(Strict Liability)

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PRESIDENTIAL ACTIONS

FIGHTING OVERCRIMINALIZATION IN FEDERAL REGULATIONS

Executive Orders | May 9, 2025

By the authority vested in me as President by the Constitution and the laws of the United States of America, it is hereby ordered:

Section 1. Purpose. The United States is drastically overregulated. The Code of Federal Regulations contains over 48,000 sections, stretching over 175,000 pages — far more than any citizen can possibly read, let alone fully understand. Worse, many carry potential criminal penalties for violations. The situation has become so dire that no one -- likely including those charged with enforcing our criminal laws at the Department of Justice — knows how many separate criminal offenses are contained in the Code of Federal Regulations, with at least one source estimating hundreds of thousands of such crimes. Many of these regulatory crimes are “strict liability” offenses, meaning that citizens need not have a guilty mental state to be convicted of a crime.

2025 Executive Order

The United States is drastically overregulated… Many… regulatory crimes are “strict liability” offenses, meaning that citizens need not have a guilty mental state to be convicted of a crime. [This] privileges large corporations, which can afford to hire expensive legal teams to navigate complex regulatory schemes and fence out new market entrants, over average Americans. …. It is the policy of the United States that [c]riminal enforcement of criminal regulatory offenses is disfavored…. Prosecutions of criminal regulatory offenses should focus on matters where a putative defendant is alleged to have known his conduct was unlawful…. **Strict liability offenses are “generally disfavored.”** … Agencies promulgating regulations potentially subject to criminal enforcement should explicitly describe the conduct subject to criminal enforcement, the authorizing statutes, and the mens rea standard applicable to those offenses.

Problem: Tainted Milk Is Deadly

The Problem

In the mid 1800s, every 2 in 5 babies died.

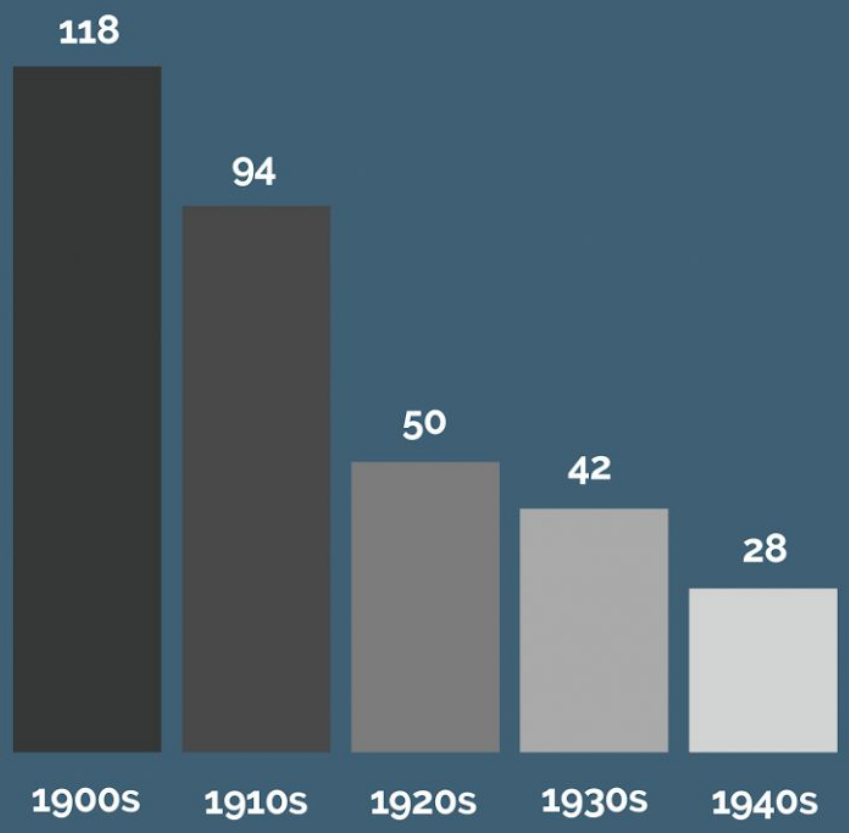
Research & Advocacy

Many advocates suspected that unpure milk was a major factor to the high rates of infant mortality. To address a poor quality milk supply, in 1898, a complete pasteurization plant was established on Randall's Island in connection with the Infant Asylum.

A study was conducted at the institution. Selected children were fed pasteurized dairy products instead of raw milk, with no other changes to their diets. In the first year of the study, the mortality rate dropped **44%**. The study proved that the improved survival rate was due solely to a healthful milk supply.

Solution? Require Pasteurization

Deaths under age 1 per 1,000 births in NYC



After the implementation of pasteurization in milk, infant mortality rate decreased dramatically. From the 1910s to the 1920s, there was a decrease of **47%** of deaths in children under 1 in NYC.

Milestones that overcame the high mortality rate:

1898: Randall's Island study

1911: Milk stations for babies are inaugurated

1912: Industrial pasteurization of milk begins

1917: Mandatory pasteurization of milk starts

1940: NYC milk production and distribution fully regulated

High Demand

15,000 ROUMANIANS IN DISASTROUS ROUT

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To-Day's Weather—FAIR AND WARMER.

HOME EDITION

The Evening World.

"Circulation Books Open to All."

"Circulation Books Open to All."

HOME EDITION

PRICE ONE CENT. Copyright, 1916, by The Press Publishing Co. (The New York World). NEW YORK, THURSDAY, OCTOBER 5, 1916. 18 PAGES PRICE ONE CENT.

HARLEM MOTHERS STORM MILK STATIONS; FAMINE WORSE AS DEADLOCK TIGHTENS

BULGARS SCATTER INVADERS THAT CROSSED THE DANUBE; DEAD COVER BATTLEFIELD

Roumanians, Attacked from Two Sides, Were Dispersed in Several Directions.

BROUGHT NO ARTILLERY

Bucharest Denies Bridge Behind Invaders Was Wrecked —Dobrudja Battle Still On.

SOFIA, Oct. 4 (via London, Oct. 5).—Bulgarian troops from the fortresses of Rustchuk and Tutrakan attacked and defeating the Roumanian force of some sixteen battalions (15,000 men) which recently crossed the Danube into Bulgarian territory near Rahovo.

YOUTH WHOSE MOTHER SAYS "SPIRIT VOICE" LED HIM TO SUICIDE

SON LED TO SUICIDE BY "SPIRIT VOICE," DECLARES MOTHER

Blackhall, Cornell Student, Often Told of Desire to Take Up Death Adventure.

HAD NO FEAR OF IT.

"More to Be Courted Than Shunned," Youth Drowned Off Ferry Is Quoted.

That Robert Blackhall, twenty years old, was led to jump into the Hudson River from a Fort Lee ferryboat Sunday night by prompting from "the spirit world," is the belief of the boy's mother. He was a Cornell student and a spiritualist.

At the home of her daughter, Mrs. Harold W. Stimpson, No. 401 Cathedral Parkway, Mrs. Blackhall told an Evening World reporter today she believed her son could not have com-

CAR STRIKE TO END WITH 'OPEN SHOP' IS RUMOR TO-DAY

Leaders Willing to Waive Union "Recognition" if They Can Retain Foothold.

GOMPERS PEACEMAKER.

Struggle So Far Has Cost Companies $5,000,000 and Men $500,000, It Is Said.

There were rumors to-day of a possible settlement of the traction strike, which is estimated to have cost the railway companies approximately $5,000,000 and the strikers $500,000 in lost wages and benefits since it started twenty-six days ago.

It is said the strike leaders are ready to yield as to formal recognition of their union, if allowed to retain the foothold they have gained among city workers.

MRS. BAYLY FREED FROM HUSBAND, A NOTED HORSEMAN

Niece of Paul Morton and Husband Agreed on Suit, It Is Reported.

SHE HAD WILD CAREER.

Indulged in So Many Escapades She Had to Be Kept in Restraint.

CHICAGO, Oct. 5.—On a charge of desertion, Mrs. Helen Morton Bayly, daughter of Mark Morton of the International Salt Company of this city and a niece of the late Paul Morton, to-day won her divorce from Roger Clay Bayly, a noted horseman of the Warrenton set in Virginia. She and Bayly were married in 1904 and their life was a stormy one almost from their wedding day.

When the decree Mrs. Bayly ob-

MRS. BAYLY DIVORCED FROM FORMER NOTED SOUTHERN HORSEMAN

HELEN MORTON BAYLY
© BY BUCK, WASH. D.C.

FIRST $1,000 HE SAVED GIVEN TO ALMA MATER

James V. Nash Worked His Way Through University of Chicago and Remembers It With Gift.

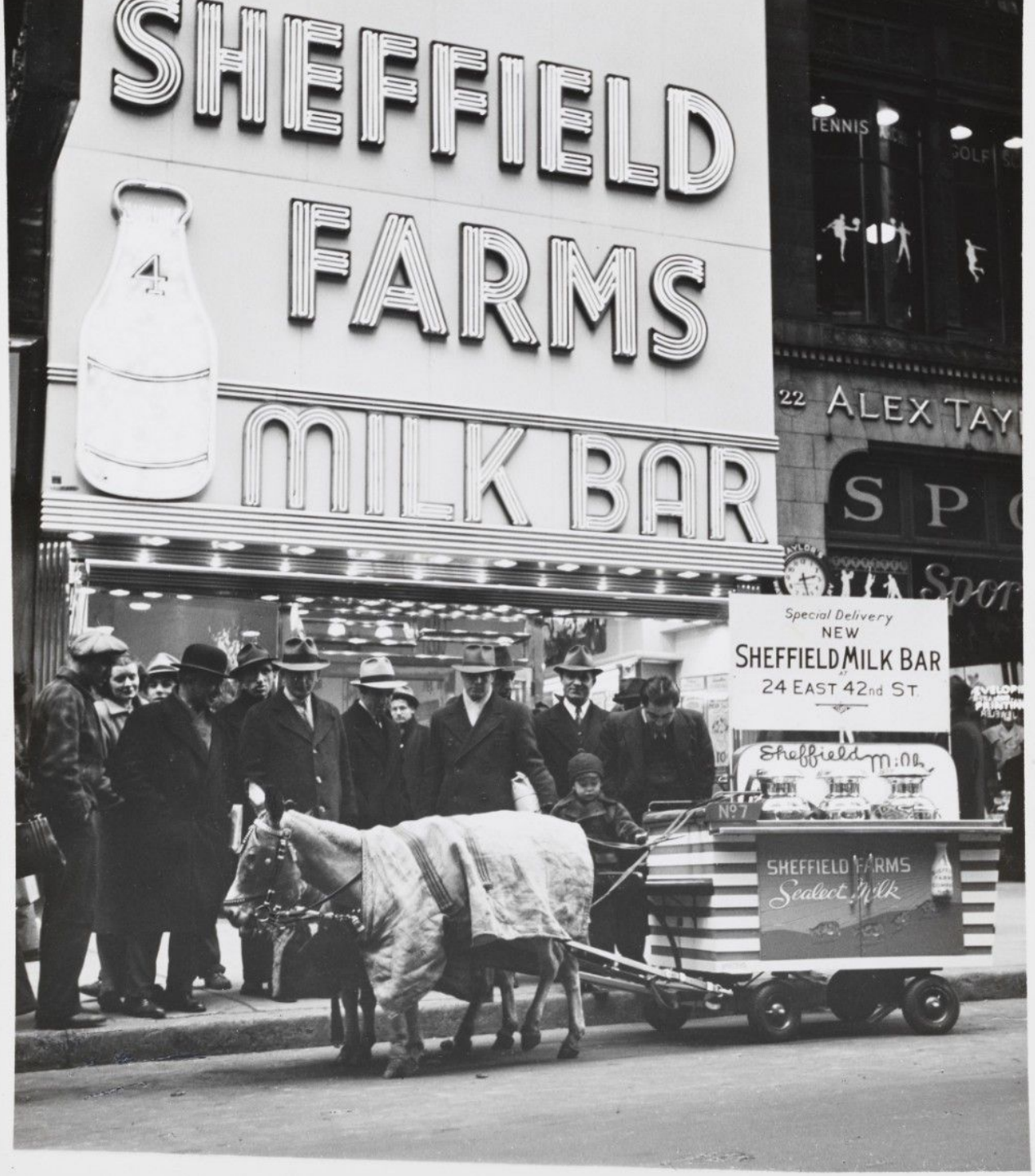
CHICAGO, Oct. 5.—James V. Nash

RIOTOUS SCENES AS WOMEN, BABES IN ARMS, APPEAL IN VAIN AT CITY DEPOTS

Distributors and Dairymen Growing More Obdurate—"No Offer of Compromise," Says Borden—"We Won't Yield a Cent," Dillon's Attitude for the Farmers.

STATE CALLS WITNESSES; INQUIRY BEGINS TO-MORROW

This is the worst day of the milk famine. Less milk was received in New York than on any other day since the farmers went on strike against big dealers who sell milk here. All the talk of compromise has


SHEFFIELD
FARMS
MILK BAR
4
TENNIS
22 ALEX TAY
Special Delivery
NEW
SHEFFIELD MILK BAR
24 EAST 42nd ST.
Sheffield Milk
No 7
SHEFFIELD FARMS
Sealect Milk

1940s Kids Drinking Pasteurized Milk at Harlem Union Settlement

Dangerous Instrumentalities

Balint: Narcotics

Act: Unauthorized narcotics distribution:

> *It shall be unlawful … to sell, barter, exchange, or give away* [narcotics] *except* [via IRS narcotics form].

Mens Rea. Silence.

Balint (1922)

Narcotics distribution law:

Regulatory? Yes.

Dangerous? Yes.

Distributor Can Prevent Harm? Yes.

Minor Penalties? Well…

$2,000 ≅$30,000 today

up to 5 years in prison

Morrissette

Four characteristics of public welfare offenses:

A. Regulatory purpose (social betterment, not inherent wrongfulness)

B. Clearly dangerous items or activities

C. Capacity to prevent harm

D. Minor penalties (fines or short prison terms)

Staples

Historically: *Morissette* & *Balint* give us a good idea of what is going on historically. Public welfare offenses were classed as strict liability offenses. The idea was that these related to dangerous (but not obviously immoral) activities that needed serious deterrence.

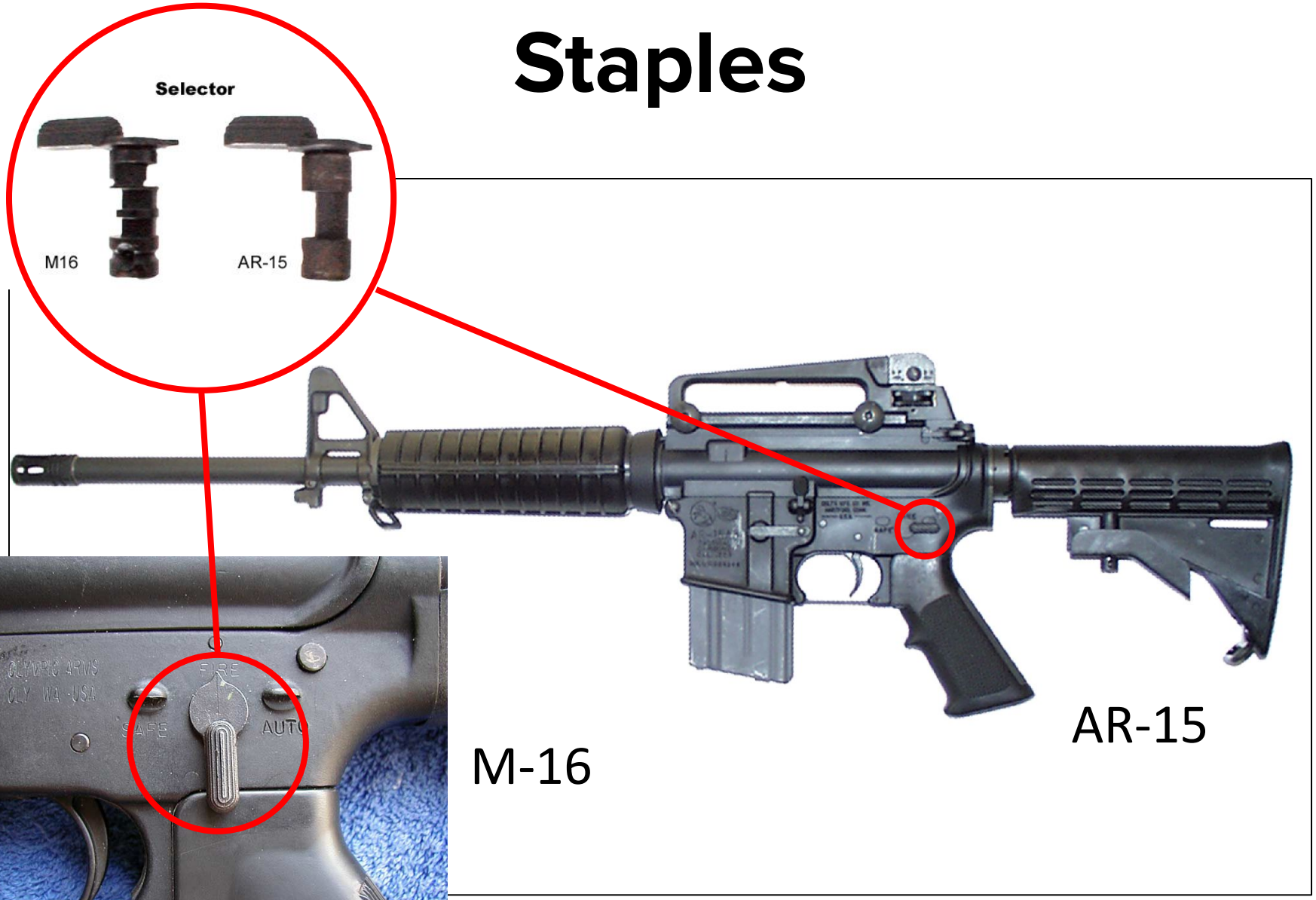
More Recently: *Staples* is a slightly more recent – though almost certainly not the last – word on this.

Public Welfare Offenses

A crime for which “a reasonable person should know [that the activity] is subject to stringent public regulation and may seriously threaten the community's health or safety.” *Liparota*

(Is that factually correct? What about milk?)

Staples


Selector
M16
AR-15
OLYMPIC ARMS
OLY WA USA
FIRE
SAFE
AUTO
M-16
AR-15

Staples: Elements

Act: Failing to register a “firearm” in your possession

Mens Rea. Silence.

Hand Grenades or Food Stamps?

Staples: Analysis

Government: What is the government's position on this?

> **Guns ≅ grenades.** It's enough to know that you own a gun. You don't need to know that it's an extremely "dangerous" gun. All guns are dangerous!

Majority: What does the majority say?

> **Guns ≅ food stamps.** Unlike "hand grenade" possession, gun possession is ubiquitous and licit. It becomes morally suspect only when the weapon possesses the properties spelled out in the statute.

Staples: Analysis

“Dangerous?”: Assumes knowledge of what the item is and that it is dangerous; whether defendant must know that much about his automatic weapon is what is at issue here.

Staples: Analysis

The elimination of *mens rea* is what is distinctive about public welfare offenses. If a court can conclude that a statute is a "public welfare" offense only when it concludes that the statute requires proof of knowledge that one is dealing with something dangerous, it will *never* construe a statute to be a public welfare offense.

It turns out, though, that *Staples* has been interpreted as a bit of an outlier, and generally only applies where serious penalties apply. Thomas keeps trying to expand *Staples*' reach, but can't get enough votes to grant cert.

Corporate Enforcement

In ***United States v. Dotterweich*** **(1943)**, the Supreme Court held that the Federal Food, Drug, and Cosmetic Act could reach corporate officers who stood in "responsible relation" to violations, even without proof of personal knowledge or involvement, **but only as a misdemeanor**.

Corporate Enforcement

In ***United States v. Park*** **(1975)**, the Supreme Court upheld the FDA's ability to fine Park despite lack of direct responsibility for the rodent infestation and health issues at ACME food:

> The [FDCA] does not, as we observed in *Dotterweich*, make criminal liability turn on "awareness of some wrongdoing" or "conscious fraud." The duty imposed by Congress on responsible corporate agents is, we emphasize, one that requires the highest standard of foresight and vigilance.

Corporate Enforcement

In ***United States v. DeCoster* (2016)**, the Supreme Court upheld the a sentence of three months imprisonment for misdemeanor violations of the FDCA:

> The [FDCA] does not, as we observed in *Dotterweich*, make criminal liability turn on "awareness of some wrongdoing" or "conscious fraud." The duty imposed by Congress on responsible corporate agents is, we emphasize, one that requires the highest standard of foresight and vigilance.

But notice…

“Furthermore, the DeCosters’ convictions were not based on ‘pure’ strict liability. As the district court found, the DeCosters were **negligent** in failing to prevent the salmonella outbreak. They were aware of the risks and the unsanitary conditions but failed to take effective action. The ‘responsible corporate officer’ doctrine requires a showing that the defendant had a ‘responsible relation’ to the violation and the power to prevent it. This implies a degree of blameworthiness.”

Bondi v. VanDerStok (2025)

Holding: kits that can be readily converted into functional weapons can be classified and regulated as weapons.

Takeaway: when Congress has authorized agency rulemaking and the agency acts within statutory bounds, courts will uphold the result — even in an area where the tradition of private ownership runs deep.

More Milk Law

Historically: The “Filled Milk Act” (1923) barring non-dairy ingredients in anything labeled as “milk”.

***Caroline Products* (1938)** challenged the restriction as anti-competitive suppression of a safe and nutritious product and lost: rational basis review for economic regulation, intermediate scrutiny for quasi-suspect classifications, strict scrutiny for fundamental rights and suspect classes.

Milnut / Milnot

***Milnont* (1972):** Since the 1940s, the food industry had changed. Many “imitation” dairy products (like non-dairy creamers and imitation milks) were now allowed in interstate commerce despite being nearly identical in composition and appearance to Milnot. The distinction was deemed “devoid of rationality,” and thus failed rational basis review.

Loper Bright (2024)

The National Marine Fisheries Service had a rule requiring fishing vessels to pay the salaries of federal observers who stayed on their boats to monitor conservation compliance. Rather than characterize the NMFS rule as “irrational” economic regulation, the Court overturned the rational basis deference established in *Carolene Products*.

Loper Bright (2024)

Corporations may now challenge any regulatory rule established by a federal agency without needing to argue that it is not rationally connected to regulatory enforcement.

Raw Milk

Health Secretary Robert F. Kennedy Jr. is a long-time advocate of raw milk's nutritional benefits that has been unfairly targeted by regulators. With support from the dairy industry, he has argued that raw milk deregulation is essential to "health freedom."

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